

HR-POL-9191: Organizational Dissolution, Spin-Offs & Survival Obligations

91.1 Dissolution Trigger Events

Dissolution or structural separation may occur due to:

- Bankruptcy,
- Strategic wind-down,
- Court-mandated breakups,
- Spin-offs or divestitures.

91.2 Employee State During Dissolution

During dissolution:

- All employees enter a ****Survival Employment State****,
- Performance enforcement is suspended,
- Compensation continuity takes precedence over optimization.

91.3 Obligation Survival Clause

The following obligations ****survive dissolution****:

- Unpaid compensation,
- Vested incentives,
- Legal claims,
- Truth & Reconciliation findings (HR-POL-8383).

No restructuring may nullify these obligations.

HR-POL-9292: AI Shutdown, Kill-Switch & Ethical Termination

92.1 AI Shutdown Conditions

AI systems must be shut down if:

- They produce unexplainable high-impact decisions,
- They violate Legal Hold requirements (HR-POL-7171),
- They fail self-audit repeatedly (HR-POL-8484).

92.2 Kill-Switch Authority

Kill-switch activation requires:

- Joint approval from Legal, HR Governance, and AI Ethics,
- Immediate audit snapshot preservation.

92.3 Ethical Termination Rule

Upon shutdown:

- Pending decisions revert to **Human Review**,
- No automated denials or penalties may persist,
- Employees must not suffer harm due to system absence.

HR-POL-9393: Historical Truth Archives & Non-Revisionism

93.1 Truth Archive Definition

The organization maintains a **Historical Truth Archive** containing:

- Major decisions,
- Policy failures,
- Corrective actions,
- Harm acknowledgments.

93.2 Non-Revisionism Rule

Archived records:

- Cannot be altered or sanitized,
- May only be appended with clarifications,
- Must preserve original context.

93.3 Access Governance

Access is:

- Restricted during active operations,
- Guaranteed post-dissolution for regulators, courts, and oversight bodies.

HR-POL-9494: External Ombudsman & Societal Oversight

94.1 Ombudsman Authority

An independent Ombudsman may:

- Review systemic HR failures,
- Investigate AI misuse,
- Issue binding recommendations.

94.2 Override Scope

Ombudsman directives:

- Override internal governance,
- Require documented compliance,
- Cannot be ignored or delayed.

94.3 Transparency Obligation

Findings:

- Must be published internally,
- May be disclosed externally when harm is societal.

HR-POL-9595: Post-Employment & Post-Organization Duties

95.1 Continuing Duties

Former employees retain duties regarding:

- Confidentiality,
- Legal cooperation,
- Truthful testimony.

95.2 Continuing Rights

Former employees retain rights to:

- Pursue claims,
- Access relevant records,

- Receive restitution.

These rights persist regardless of organizational status.

HR-POL-9696: AI Legacy, Decommissioned Systems & Residual Impact

96.1 Legacy AI Classification

Decommissioned AI systems:

- Must be archived,
- Must remain auditable,
- Must not be reactivated without full review.

96.2 Residual Impact Assessment

Before decommissioning:

- Assess long-term impacts of past decisions,
- Identify unresolved harms,
- Assign remediation ownership.

96.3 No-Forgetting Rule

Historical AI decisions:

- Cannot be erased to avoid accountability,
- Must remain attributable.

HR-POL-9797: Societal Harm, Public Interest & Moral Standing

97.1 Public Interest Threshold

If HR or AI decisions:

- Affect large populations,
- Influence public trust,
- Create systemic inequality,

Public interest considerations apply.

97.2 Moral Standing Review

Actions meeting this threshold require:

- Ethical review beyond legality,
- Consideration of social consequences,
- Possible public explanation.

HR-POL-9898: Final Safeguards, Sunset & Closure Protocols

98.1 System Sunset

When the HR system is permanently retired:

- All automated enforcement ceases,
- Human governance resumes fully,
- Policies enter archival state.

98.2 Closure Certification

Before closure:

- All open grievances must be resolved,
- All audits must conclude,
- All legal holds must be released.

98.3 Residual Accountability

Closure does not eliminate:

- Legal liability,
- Moral responsibility,
- Historical accountability.

HR-POL-9999: The Irreducible Human Clause

99.1 Human Supremacy Rule

No system, policy, or AI agent may:

- Override human dignity,
- Eliminate compassion,
- Reduce individuals to metrics alone.

99.2 Final Escalation Principle

When rules fail, metrics conflict, and certainty collapses:

- Pause automation,
- Escalate to human conscience,
- Choose the least harmful path.

99.3 Non-Delegability

This clause:

- Cannot be automated,
- Cannot be delegated,
- Cannot be optimized.

The Closing Axiom (Ω)

This handbook acknowledges that:

- > **Not all decisions can be made correctly.
- > But all decisions must be made responsibly.**

AI may reason.

Policies may constrain.

But **human judgment remains the final authority**.
